

3	Batista vs. Tesla, Inc. 2025-01535459	Motion to Compel Arbitration Defendant Tesla, Inc.’s motion to compel arbitration is GRANTED. (See Code Civ. Proc. § 1281.2.) Defendant’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) Plaintiffs Ashley Laurenbarrios Batista and Anton Sebastian Batista are hereby ORDERED to arbitrate their claims against Defendant consistent with the terms of the Arbitration Agreement set forth in the Motor Vehicle Order Agreement, dated 2/11/23 (MVOA). (See Kim Decl. at Ex. 1 [MVOA].) This matter is STAYED pending the arbitration proceedings. (Code Civ. Proc. § 1281.4.) <i>A status conference re: Status of ADR proceedings is set for February 5, 2027 at 8:30 a.m. in this department.</i> <i>The Case Management Conference currently scheduled for hearing on 8/7/26 is VACATED.</i> Defendant has met its burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 [three-step burden shifting process]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>) [same]; see also Kim Decl. ¶¶ 2-7, Ex. 1 [“MVOA” or “Arbitration Agreement”].) Plaintiffs have not disputed the existence or authenticity of the MVOA or the Arbitration Agreement therein. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i>, at p. 837 [if opposing party fails to carry second-step burden, the burden shifting process stops there].) Plaintiffs have failed to meet their burden to demonstrate a defense to enforcement. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [burden].) Plaintiffs contend the unconscionability of the Arbitration Agreement is a defense to the enforcement of the Agreement. (See <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 492-493 (<i>Ramirez</i>) [unconscionability, generally].) Plaintiffs must show that the Arbitration Agreement is both procedurally and substantively unconscionable to establish
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unconscionability as a defense to enforcement of the Arbitration Agreement. (See *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243-1244 [both procedural and substantive unconscionability must be present before court may refuse to enforce a contract based on the doctrine of unconscionability].)

Procedural Unconscionability

There is a low degree of procedural unconscionability as the arbitration agreement appears in a standardized, preprinted form contract offered by the party with superior bargaining power on a take-it-or-leave-it basis. (See Kim Decl. ¶¶ 3-4 [plaintiff would not have been able to place the order for the vehicle without agreeing to the MVOA], Ex. 1.) “ ‘[T]he adhesive nature of’ an arbitration agreement ‘is sufficient to establish some degree of procedural unconscionability.’ [Citations.]” (*Swain v. LaserAway Medical Group, Inc.* (2020) 57 Cal.App.5th 59, 67-68.) This is so notwithstanding the existence of an opt-out provision. (*Id.* at p. 69 [“an opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability”].)

Plaintiff also contends the Agreement is procedurally unconscionable because Defendant has failed to provide a copy of the applicable arbitration rules. This is not a persuasive argument for procedural unconscionability because Plaintiffs do not show anything was hidden in the rules or that the rules are substantively unconscionable. (*Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249; see *Baltazar, supra*, 62 Cal.4th at p. 1246.)

Substantive Unconscionability

Plaintiffs have failed to demonstrate any substantive unconscionability. (See *Ramirez v. Charter Communications, Inc., supra*, 16 Cal.5th at pp. 492-493 [although adhesion contracts are procedurally unconscionable, they nevertheless “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively unconscionable or otherwise invalid”]; see also *id.* at pp. 494-495 [substantive unconscionability, generally].)

Specifically, Plaintiffs contend the MVOA is substantively unconscionable because (1) the arbitration provision “allows for a choice of arbitration forum – but only for the party ‘electing’ to arbitrate,” allowing “Tesla [to] ‘elect’ both to arbitrate in the first place, and choose the forum, and choose the rules”; (2) “the

arbitration-cost provisions are substantively unconscionable and clearly violate ... the minimum due process standards for consumer arbitrations,” as they serve to “discourage[] ... buyers from seeking to enforce their legal rights, as buyers are potentially faced with bearing exorbitant arbitration costs and expenses they may have to reimburse to Tesla”; and (3) the “[a]rbitration would impose prohibitive costs on Plaintiff....” (ROA 25 at pp. 6-7.) Plaintiffs also argue that the arbitration clause gives Defendant the sole discretion to select the arbitrator. (See *id.* at p. 7.)

None of these arguments is persuasive. Plaintiffs do not establish that Arbitration Agreement grants Tesla the sole discretion to select the arbitrator. The Arbitration Agreement requires arbitration of “any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla ... by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules.” (Kim Decl. at Ex. 1, p. 3.) This requirement applies equally to both parties. The mere fact that the agreement requires arbitration with AAA does not somehow render the provision “unfair” or “ ‘so one-sided as to ‘shock the conscience’ ” such that it is substantively unconscionable. (See *Ramirez, supra*, 16 Cal.5th at pp. 494-495.) Nothing suggests the AAA will not fairly administer the arbitration. (See *id.* at p. 506 [“Normally, we assume the arbitrator will act reasonably and in conformity with the law.”].) If anything, this argument presents an issue of procedural unconscionability rather than substantive unconscionability.

Plaintiffs’ argument regarding costs of arbitration also fails to establish substantive unconscionability. Plaintiffs contend the arbitration agreement leaves Plaintiffs “bearing exorbitant arbitration costs and expenses,” and supposedly “impose prohibitive costs on Plaintiffs”. (ROA 25 at p. 7.) But the explicit terms of the Arbitration Agreement require Defendant to bear all costs of arbitration. The Agreement states: “[Tesla] will pay all AAA fees for any arbitration, which will be held in the city or county of [plaintiff’s] residence.” (Kim Decl. at Ex. 1, p. 3.) Plaintiffs fail to address the plain language of the Arbitration Agreement, and have not shown or explained how Plaintiffs would be required to pay any costs unique to arbitration under the terms of the Arbitration Agreement. There is no basis to find the cost provisions of the Arbitration Agreement are substantively unconscionable. (See *Engalla, supra*, 15 Cal.4th at p. 972 [burden]; see also *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a

		party's argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 ["It is not the court's function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments."].) Defendant shall give notice.
4	Davis vs. Snell & Wilmer, LLP 2025-01522338	Demurrer to Complaint <i>Vacated. See minute order dated 7/6/26 (ROA 43).</i>
5	Diane Gibbs vs. Smith 2025-01532452	Motion for Judgment on the Pleadings Defendants Greater Pacific Roofing ("GPR") and Kevin Crowley's motion for judgment on the pleadings is DENIED as to the second cause of action for negligence as alleged against GPR, and GRANTED in all other respects. Plaintiffs Randy Morton and Diane Gibbs are granted 10 days leave to file a first amended complaint. <u>Entire complaint as alleged against Crowley.</u> As alleged against Crowley, the complaint fails to allege any facts against him in his individual capacity that give rise to any individual liability. The only allegations involving Crowley involve his statements on behalf of GPR as its CEO. (See Compl. at att. A.) <u>First cause of action for "motor vehicle."</u> The complaint fails to state facts sufficient to constitute a cause of action for "motor vehicle" negligence/liability. The complaint does not allege any facts suggesting the defendants engaged in any conduct that might give rise to such liability. <u>Second cause of action for general negligence.</u> The complaint adequately alleges a claim for negligence against GPR. (See <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1142 [elements]; Civ. Code, § 1714, subd. (a) [duty]; <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, 806 [under section 1714, damages are recoverable where they result from an injury to one's person or property caused by another's negligence]; <i>Esparza v. Kaweah Delta Dist. Hospital</i> (2016) 3 Cal.App.5th 547, 555 [the "use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer"; instead, the "court must examine the particular allegations ... and determine whether